



MUST BE SUBMITTED IN FULL TO THE
COMMUNITY DEVELOPMENT DEPARTMENT
BY 5:00 P.M. ON _____
HEARING DATE: _____

Variance *Application Packet*

A variance allows a property owner to legally deviate from specific terms of the Zoning Regulations which will not be contrary to the public interest, and where, due to special conditions, a literal enforcement of the provisions of these regulations, in an individual case, results in unnecessary hardship, provided that the spirit of these regulations shall be observed, public safety and welfare secured, and substantial justice done. Such variance shall not permit any use not allowed by the Zoning Regulations in a district. The Board of Zoning Appeals (“BZA”) considers a request for a variance at a public hearing, and approves or denies the request after applying factual evidence to specific standards.

The Application Packet must be submitted with **all required materials listed on the Application Check List on page 2** to be deemed complete. City Administration cannot submit an application to the BZA for consideration until all requirements have been met. All materials will be presented as evidence at the public hearing and must be kept as part of the public record and will not be returned to the applicant.

The following items must be completed after the request has been scheduled for a public hearing. City Administration will provide assistance in completing these tasks. If these tasks are not completed, the variance request will be delayed until the tasks are completed.

- **Public Hearing Yard Sign:** A public hearing yard sign is required to further provide notice that a request for a variance has been submitted. The applicant shall obtain a Notice of Public Hearing Yard Sign and Instructions from the Community Development Department and post the sign on the property at least 20 days prior to the public hearing.
- **Public Hearing Yard Sign Affidavit:** On the day of the public hearing, the applicant must sign a Public Hearing Yard Sign Affidavit to verify that the sign has been in place at least 20 days prior to the public hearing. This form **must** be signed before 5 p.m. at the Community Development Department.

Notification Requirements

The City must notify all property owners within 200 feet of the property where a variance request has been proposed. This notification allows individuals the opportunity to learn about the request and present any comments to the BZA at the public hearing.

The \$20 property owner notification fee paid to the Riley County Clerk’s Office is to compensate the County for ownership research as well as to create an accurate and up-to-date list of names and mailing addresses of the property owners within the notification area, as described above.

**IF YOU HAVE QUESTIONS ABOUT COMPLETING THIS APPLICATION, PLEASE
CONTACT THE COMMUNITY DEVELOPMENT DEPARTMENT AT 785-587-2412.**

City Hall * 1101 Poyntz Avenue * Manhattan Kansas * 66502-5497
Phone 785-587-2412 * fax 785-587-2439
Home Page Address: www.cityofmhk.com

Application Check List

A complete Application Packet for a variance consists of the following
(Check that each item is submitted):

☐ **Basic Information:**

- ☐ Information Form;
- ☐ Adjoining Property Owner Support Statement (This form is optional, see the form for more guidance).

All property owners must be listed in Section II. Property Information and all property owners must sign the application.

- ☐ **Legal Description:** Provide a complete and correct legal description of the property for which the Variance is requested. The legal description must be **typewritten**, readable and reproducible.

☐ **Fees:**

- ☐ The application fee is \$120. The check should be payable to the City of Manhattan.
- ☐ The property owner notification fee is \$20. The check should be payable to the Riley County Clerks' Office.

- ☐ **Site Plan and Architectural Elevations:** The applicant shall submit a Site Plan and Architectural Elevations (*where applicable*). These plans shall be accurately drawn to scale that shows the Variance being sought. The final Site Plan shall be one set of 8½ by 11 inch, readable and reproducible, reductions of all drawings. A Site Plan checklist can be found on page 7 to assist in creating the required Site Plans.

- ☐ **Photos and Exhibits (where applicable):** Photographs and other exhibits may be submitted at the time of the application to further support the request.

A copy of any visual materials (power point presentations, photos, etc.) or handouts presented at the public hearing that are not submitted with the application materials shall be given to City Administration at the public hearing to be a part of the meeting record.

- ☐ **Building permit or sign permit application (where applicable):** If the requested Variance(s) would require a building or sign permit upon approval by the Board of Zoning Appeals, a completed permit application must be submitted with the BZA application (see attached).



Information Form

This information form must be completed in its entirety before the application will be accepted.

I. APPLICANT INFORMATION

Applicant _____

Primary Contact (if applicant is an entity) _____

Address: _____

City: _____ State: _____ Zip: _____

Tel: _____ Fax: _____

Email: _____

Relationship to property owner(s) (*check most applicable*)

☐ Property Owner ☐ Buyer ☐ Consultant ☐ Other (describe) _____

II. PROPERTY INFORMATION

List all Property Owners of record _____

-If the Property Owner is an entity, list the individual(s) with authority to execute this application for the entity.

Property Address: _____

Legal Description: Lot: _____ Subdivision: _____ (Or attach description)

Existing Use of Property: _____

Total Property (Lot) Area: _____ (Square feet or acres)

Current Zoning District: _____

III. NATURE OF REQUEST FOR VARIANCE

If more space is needed, please attach additional pages.

1. Describe the proposed project and explain why a Variance is requested. The explanation should be in sufficient detail for the BZA to completely and clearly understand the project.

2. Explain why the granting of the Variance will not adversely affect the rights of adjacent property owners or residents.

3. Explain why the Variance requested arises from a condition, or conditions which are unique to the property in question and which are not ordinarily found in the same zoning district, and is not created by an action or actions of the property owner or the applicant.

4. Explain why the strict application of the provisions from which a Variance is requested will constitute unnecessary hardship upon the property owner represented in the application.
(*The BZA cannot consider economic hardship*).

5. Explain how the Variance will not adversely affect the public health, safety, morals, order, convenience, prosperity, or general welfare.

6. Explain why granting the Variance will not be contrary to the general spirit and intent of the Zoning Regulations.

EACH PERSON SIGNING THIS APPLICATION PACKET ATTESTS TO THE FOLLOWING:

- That the facts and information in this Application Packet and its attachments are true, complete and accurate, to the best of the person's knowledge;
- That the signatory understands that any omission, or incorrect information, may invalidate any required notice or action taken by the Board of Zoning Appeals.
- That each Property Owner grants to the Applicant, and the Applicant accepts, the authority to represent the property owner in all aspects of the processing of this Application Packet, including but not limited to, communication with City Administration, representation at all meetings and public hearings, and modification of this Application Packet.

PROPERTY OWNER(S)

*All property owners must sign. If the property owner is an entity, the signatory must have the authority to sign this application for the entity.

BBB Inc. by Brent B. Baker
Print Name: Brent B. Baker

5-20-21
Date

Print Name: _____

Date

APPLICANT



Print Name: Aaron Dyck, BBN Architects

5-20-21
Date

FOR OFFICE USE ONLY

Date Received: _____ Received By: _____

Public Hearing Date: _____

City: Fee Paid: _____ Receipt # _____
Check _____ Check # _____ Cash _____

County: Fee Paid: _____ Receipt # _____
Check _____ Check # _____ Cash _____

Variance

Site Plan Checklist

A Site Plan and Architectural Elevations (*where applicable*) shall be submitted at the time of the application. These plans shall be accurately drawn to scale that shows the Variance being sought. The final Site Plan shall be one set of 8½ by 11 inch, readable and reproducible, reductions of all drawings.

Check that each item is included on the site plan

- ☐ North arrow;
- ☐ Engineer or architect scaled drawing (for example, 1/4" = 1');
- ☐ Property lines;
- ☐ Adjacent streets (names), alleys and sidewalks;
- ☐ Public or private easements on the property;
- ☐ Existing building setbacks;
- ☐ Proposed building setbacks;
- ☐ Dimensions of existing and proposed improvements;
- ☐ Location of Flood Plain, if necessary;
- ☐ Location of existing and proposed drives and parking;
- ☐ Location of existing and proposed structures, additions or other improvements;
- ☐ Existing and proposed landscaping;
- ☐ Name and address of owner of the property;
- ☐ Name and address of consultant (engineer, architect, land surveyor, etc.); and,
- ☐ Date the Site Plan was prepared.
- ☐ Site plan title (i.e. Lot Area Variance for 1101 Poyntz Avenue)

Architectural elevations

- ☐ Elevation and dimensioned drawings of proposed building, signs or other improvements shall be submitted on a separate sheet where applicable.

STANDARDS FOR VARIANCES

The Board of Zoning Appeals shall not grant a variance unless it shall, in each case, make specific written findings of fact directly based upon the particular evidence presented to it that all of the following standards have been met:

- (1) The variance requested arises from such condition which is unique to the property in question and which is not ordinarily found in the same zoning district, and is not created by an action or actions of the property owner or the applicant;
- (2) The granting of the variance will not adversely affect the rights of adjacent property owners or residents;
- (3) The strict application of the provisions of these regulations from which a variance is requested will constitute unnecessary hardship upon the property owner represented in the application;
- (4) The variance desired will not adversely affect the public health, safety, morals, order, convenience, prosperity, or general welfare; and
- (5) Granting the variance desired will not be opposed to the general spirit and intent of these regulations.